



**MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY**

REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA
NUMBER 9 OF 2022
ABOUT

CHANGES TO THE REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY NUMBER 15 OF 2021
ABOUT COORDINATION OF SPATIAL PLANNING IMPLEMENTATION

BY THE GRACE OF GOD ALMIGHTY

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Considering: a. that in order to realize transparent, effective, participatory, productive and sustainable spatial planning, a Spatial Planning Forum is required;

b. that for the effective operationalization of the Spatial Planning Forum, it is necessary to change the provisions in the Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head of the National Land Agency Regulation Number 15 of 2021 concerning Coordination of Spatial Planning Implementation;

c. that based on the considerations as referred to in letters a and b, it is necessary

establish the Regulation of the Minister of Agrarian Affairs and Spatial Planning Room/Head of the National Land Agency regarding Amendments to the Regulation of the Minister of Agrarian Affairs and Spatial Planning Room/Head of National Land Agency Number 15 2021 on Coordination of Implementation Spatial planning;

- Bearing in mind: 1. Article 17 paragraph (3) of the Constitution of the Republic Indonesia 1945;
2. Law Number 26 of 2007 concerning
Spatial Planning (State Gazette of the Republic of Indonesia)
2007 Number 68, Supplement to the State Gazette
Republic of Indonesia Number 4725);
3. Law Number 39 of 2008 concerning
Ministry of State (State Gazette of the Republic
Indonesia 2008 Number 166, Additional Sheet
Republic of Indonesia Number 4916);
4. Government Regulation Number 21 of 2021 concerning
Implementation of Spatial Planning (State Gazette
Republic of Indonesia 2021 Number 31, Supplement
State Gazette of the Republic of Indonesia Number 6633);
5. Presidential Regulation Number 47 of 2020 concerning
Ministry of Agrarian Affairs and Spatial Planning (State Gazette
of the Republic of Indonesia 2020 Number 83);
6. Presidential Regulation Number 48 of 2020 concerning
National Land Agency (State Gazette of the Republic of
Indonesia 2020 Number 84);
7. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head
National Land Agency Number 16 of 2020

regarding the Organization and Work Procedures of the Ministry of Agrarian Affairs
and Spatial Planning/National Land Agency (News
Republic of Indonesia 2020 Number 985);
8. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head
National Land Agency Number 17 of 2020

regarding the Organization and Work Procedures of the Regional Office of the Agency
National Land and Land Office (News)
Republic of Indonesia 2020 Number 986);
9. Regulation of the Minister of Agrarian Affairs and Spatial Planning/Head
National Land Agency Regulation Number 15 of 2021

on Coordination of Spatial Planning Implementation
(State Gazette of the Republic of Indonesia 2021 Number
327);

DECIDE:

To stipulate: REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/HEAD
NATIONAL LAND AGENCY ON CHANGES
ON THE REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY NUMBER 15 YEARS
2021 ON COORDINATION OF IMPLEMENTATION
SPATIAL PLANNING.

Article I

Several provisions in the Regulation of the Minister of Agrarian Affairs and
Spatial Planning/Head of the National Land Agency Number 15
2021 concerning the Coordination of the Implementation of Regional Development Planning
The space (State Gazette of the Republic of Indonesia 2021 Number 327)
is amended as follows:

- 1. The provisions of number 13 and number 14 of Article 1 are amended,
so that Article 1 reads as follows:

article 1

In this Ministerial Regulation, the following terms are defined as:

- 1. Spatial Planning, hereinafter abbreviated as
RTR is the result of spatial planning.
- 2. Detailed Spatial Planning Plan, hereinafter abbreviated as RDTR,
is a detailed plan regarding the spatial planning of a district/city
area which is equipped with district/city regulations.
regulation zoning
- 3. Spatial Planning is a system of processes for Spatial Planning,
Space Utilization, and Space Utilization Control.
- 4. Implementation of Spatial Planning is an activity that includes guidance,
implementation and arrangements Spatial Planning.
- 5. Conformity of Spatial Utilization Activities, hereinafter abbreviated
as KKPR, is the conformity between the spatial utilization
activity plan and the RTR.
- 6. Approval of Conformity of Spatial Utilization Activities, hereinafter
abbreviated as PKKPR, is a document that states the conformity
between the spatial utilization activity plan and the RTR.
besides RDTR.

7. The Central Government is the President of the Republic
Indonesia who holds power
the government of the Republic of Indonesia
assisted by the Vice President and ministers
as referred to in the 1945 Constitution of the Republic of Indonesia.
8. The Regional Government is the regional head as an element of the regional
government administration which
lead the implementation of government affairs that fall under the authority
of autonomous regions.
9. The community is an individual, a group of people including customary law
communities, corporations, and/or other non-government stakeholders in
the Implementation of

Spatial planning.
10. The Spatial Planning Forum is a forum at the central and regional levels
which is tasked with assisting the Central Government and Regional
Governments by providing considerations in the Implementation of

Spatial planning.
11. The Minister is the Minister who organizes government affairs in the field of
Spatial Planning.
12. The Director General of Spatial Planning, hereinafter referred to as the
Director General, is a high-ranking official who organizes the formulation
and implementation of policies in the field of spatial planning and spatial
utilization at the Ministry of Agrarian Affairs and Spatial Planning/Agency.

National Land.
13. Professional Association is the Association of Planning Experts
Indonesia (IAP) or the regional planning professional association formed
in accordance with the provisions of laws and regulations.
14. The Academic Association is a School Association
Indonesian Planning Association (ASPI) or other regional planning
academic associations that
formed in accordance with the provisions of laws and regulations.

2. The provisions of paragraph (2) of Article 8 are amended, so that Article 8 reads as follows:

Article 8

- (1) The provincial Spatial Planning Forum as referred to in Article 7 letter a in the province is determined by a governor's decree.
- (2) The district/city Spatial Planning Forum as referred to in Article 7 letter b in districts/cities are determined by a decision of the regent/mayor.

3. The provisions of Article 9 are amended to read as follows following:

Article 9

- (1) Governors, district heads and mayors report periodically to the Minister on the performance of the implementation of the duties of the Spatial Planning Forum in the region.
- (2) Performance report on the implementation of the tasks of the Arrangement Forum
The space as referred to in paragraph (1) is implemented every 6 (six) months since the formation of the Spatial Planning Forum in the region.
- (3) The format for the performance report on the implementation of the duties of the Spatial Planning Forum as referred to in paragraph (2) is listed in the Attachment which is an integral part of this Ministerial Regulation.

4. The provisions of Article 11 are amended to read as follows following:

Article 11

- (1) Members of the Spatial Planning Forum in the region who come from vertical land agencies and regional apparatus are attached to his position (*ex-officio*).
- (2) Members of the Spatial Planning Forum in the area comes from Professional Associations and Associations
Academics are appointed by the chairman of the Professional Association and the Academic Association on:
 - a. request from the governor, regent, or mayor; or

b. initiation of Professional Associations and Associations
Academics.

(3) The request from the governor, regent or mayor as referred to in paragraph
(2) letter a is submitted via a letter of application addressed to the central
management of the Professional Association.

and the Academic Association.

(4) The central management of the Professional Association and Academic
Association as referred to in paragraph (3)
provide a reply letter to the governor, regent or mayor no later than 10
(ten)
working days after receipt of the application letter.

(5) If within the time period referred to in paragraph (4) the central management
of the Association
Professions and Academic Associations do not provide
reply letter, membership of the Arrangement Forum
Space originating from the Professional Association and
The Academic Association is appointed by the governor,
regent, or mayor.

(6) Members of the Spatial Planning Forum in the area
comes from community figures appointed by
governor, regent, or mayor.

5. The provisions of Article 13 are amended to read as follows
following:

Article 13

- (1) Membership of the Spatial Planning Forum in the region
for representatives of Professional Associations, Associations
Academics, and community figures ended
if:
a. died;
b. resign; or
c. is no longer a member of the Association
Profession or Academic Association.
- (2) Members of the Spatial Planning Forum in the region from
elements of Professional Associations, Academic Associations, or
Community figures can be proposed to
replaced based on the results of the Arrangement Forum meeting
Space in the area.

- (3) Governor, regent, or guardian city following up on the results of the Arrangement Forum meeting The space as referred to in paragraph (2) no later than 20 (twenty) working days.
- (4) Replacement of members of the Spatial Planning Forum in area based on the provisions in paragraph (1) and paragraph (2) follows the procedures as regulated in Article 11.

6. The provisions of Article 17 are amended to read as follows following:

Article 17

- (1) The Chair of the Provincial Spatial Planning Forum as referred to in referred to in Article 7 letter a is held by provincial regional secretary.
- (2) Deputy Chair of the Provincial Spatial Planning Forum as referred to in Article 7 letter a held by:
 - a. representatives of professional associations;
 - b. representatives of the Academic Association; or
 - c. head device area Which carry out government affairs in regional development planning sector.
- (3) Deputy chair of the provincial Spatial Planning Forum held by representatives of the Association Profession as referred to in paragraph (2) letter a, must meet the requirements including:
 - a. have a professional planning license spatial planning; and
 - b. does not have the status of a state civil servant.
- (4) In terms of regulating professional staff licensing spatial planning as referred to in paragraph (3) letter a has not been stipulated in accordance with the provisions laws and regulations, requirements as deputy chairman of the provincial Spatial Planning Forum using a certificate of competency in the field of expertise regional planning at the lowest expert level middle.

- (5) Deputy chair of the provincial Spatial Planning Forum held by a representative of the Academic Association as referred to in paragraph (2) letter b, must meet the requirements including:
- a. actively teaches in sub-group study programs regional planning science; and
 - b. have the lowest academic position lecturer level and/or group III/c.
- (6) The Secretary of the provincial Spatial Planning Forum as referred to in Article 7 letter a is held by the head of the regional apparatus.
- carry out government affairs in the field of spatial planning.
- (7) Members of the Provincial Spatial Planning Forum as referred to in Article 7 letter a consists of vertical agencies in the land sector and regional apparatus elements which include:
- a. head device area Which carry out government affairs in maritime sector;
 - b. head device area Which carry out government affairs in regional development planning sector;
 - c. head device area Which carry out government affairs in public works sector;
 - d. head device area Which carry out government affairs in energy and mineral resources sector;
 - e. head device area Which carry out government affairs in agricultural sector;
 - f. device head area Which carry out government affairs in forestry sector;

- g. head device area Which
carry out government affairs in
environmental sector;
- h. head device area Which
carry out government affairs in
investment sector; and
- i. Head of the Regional Office of the Land Agency
National.

- (8) Number of representatives of Professional Association elements,
Association of Academics and Community Leaders in
The provincial Spatial Planning Forum consists of
1 (one) person each.
- (9) Members of the provincial Spatial Planning Forum from
representatives of the Professional Association as referred to
in paragraph (8), must have a competency certificate
expertise in regional planning.
- (10) Members of the provincial Spatial Planning Forum from
representatives of the Academic Association as referred to in
referred to in paragraph (8), must actively teach at
study program for the subgroup of planning sciences
region.

7. The provisions of Article 18 are amended to read as follows
following:

Article 18

- (1) Chair of the Regency/City Spatial Planning Forum
as referred to in Article 7 letter b
held by the district/city regional secretary.
- (2) Deputy Chairman of the Spatial Planning Forum
district/city as referred to in
Article 7 letter b is held by:
 - a. representatives of professional associations;
 - b. representatives of the Academic Association; or
 - c. device head area Which
carry out government affairs in
regional development planning sector.

- (3) Deputy chair of the district/city Spatial Planning Forum, held by a representative Professional Associations as referred to in paragraph (2) letter a, must fulfill the following provisions:
- a. have a professional planning license spatial planning; and
 - b. does not have the status of a state civil servant.
- (4) In terms of regulating professional staff licensing spatial planning as referred to in paragraph (3) letter a has not been determined in accordance with the provisions of laws and regulations, requirements as deputy chairman of the Spatial Planning Forum district/city use certificate regional planning expertise competency the lowest level is an associate expert.
- (5) Deputy chair of the district/city Spatial Planning Forum, held by a representative The Academic Association as referred to in paragraph (2) letter b, must fulfill the provisions includes:
- a. actively teaches in sub-group study programs regional planning science; and
 - b. have the lowest academic position lecturer level and/or group III/c.
- (6) Secretary of the Regency/City Spatial Planning Forum as referred to in Article 7 letter b held by the head of the regional apparatus carry out government affairs in the field of spatial planning.
- (7) Members of the Regency/City Spatial Planning Forum as referred to in Article 7 letter b consists of vertical agencies in the land sector and regional apparatus elements which include:
- a. head device area Which carry out government affairs in regional development planning sector;

- b. head device area Which
carry out government affairs in
public works sector;
- c. head device area Which
carry out government affairs in
agricultural sector;
- d. head device area Which
carry out government affairs in
environmental sector; e.
head of the apparatus area Which
carry out government affairs in
investment sector; and
- f. Head of the land office.

- (8) Number of representatives of Professional Association elements, Association of Academics and Community Leaders in The district/city Spatial Planning Forum consists of 1 (one) person each.
- (9) Members of the Regency/City Spatial Planning Forum from representatives of Professional Associations as referred to in paragraph (8), must have a certificate regional planning expertise competency.
- (10) Members of the Regency/City Spatial Planning Forum from representatives of the Academic Association as referred to in paragraph (8), must actively teach in the study program of the planning science sub-group region.

8. The provisions of Article 22 are amended to read as follows
following:

Article 22

Other professional associations and other academic associations as referred to in Article 21 paragraph (3) and paragraph (4) is an association related to the field of Arrangement Space and legal entity based on legislation.

9. The provisions of Article 25 are amended to read as follows following:

Article 25

The duties of the provincial Spatial Planning Forum in spatial planning as referred to in Article 24 letter a includes:

- a. provide considerations for the preparation of RTR province;
- b. provide recommendations for integration adjustments technical material on the content of coastal waters regulations in provincial spatial planning;
- c. provide consideration for strengthening the role Community in the preparation of regional RTR provinces through the implementation of public opinion gathering, discussion forums and public consultations which cover some or represent the conditions of all provincial area; and
- d. conducting discussions on spatial planning district/city area.

Article II

1. When this Ministerial Regulation comes into force:

- a. regional spatial planning coordination team that has formed by the governor, regent, or mayor adjusted to become a Spatial Planning Forum based on this Ministerial Regulation no later than 6 (six) months since this Ministerial Regulation comes into force applies; and
- b. The Spatial Planning Forum which has been formed by governor, regent, or mayor adjusted based on this Ministerial Regulation no later than 1 (one) year since this Ministerial Regulation comes into force applies.

2. This Ministerial Regulation shall come into force on the date enacted.

So that everyone knows, ordering the promulgation of this Ministerial Regulation by placing it in the State Gazette of the Republic of Indonesia.

Established in Jakarta
on May 19, 2022

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY
REPUBLIC OF INDONESIA,

Signed.

SOFYAN A. DJALIL

Enacted in Jakarta
on May 27, 2022

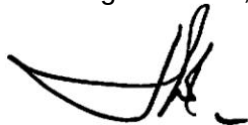
MINISTER OF LAW AND HUMAN RIGHTS
REPUBLIC OF INDONESIA,

Signed.

YASONNA H. LAOLY

STATE GAZETTE OF THE REPUBLIC OF INDONESIA 2022 NUMBER 530

Copy true to original
Head of Legal Bureau,



Joko Subagyo, SH, MT
NIP. 19690822 199403 1 002

ATTACHMENT

REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY

REPUBLIC OF INDONESIA

NUMBER 9 OF 2022

ABOUT

CHANGES TO THE REGULATION OF THE MINISTER OF AGRARIAN AFFAIRS
AND SPATIAL PLANNING/HEAD OF LAND AGENCY
NATIONAL LAW NUMBER 15 OF 2021 CONCERNING
COORDINATION OF IMPLEMENTATION OF ARRANGEMENT
ROOM

FORMAT OF THE SPATIAL PLANNING FORUM TASK IMPLEMENTATION REPORT

REPORT ON THE IMPLEMENTATION OF THE SPATIAL PLANNING FORUM'S ASSIGNMENTS

PROVINCE/DISTRICT/CITY
YEAR
SEMESTER

I. BACKGROUND

II. IMPLEMENTATION OF THE PROVINCE/DISTRICT/CITY SPATIAL PLANNING FORUM

A. PROBLEMS/OBSTACLES 1.

- Spatial Planning Process
- 2. Space Utilization Process
- 3. Space Utilization Control Process

B. IMPLEMENTATION OF THE IMPLEMENTATION OF THE SPATIAL PLANNING FORUM'S DUTIES

PROVINCE/DISTRICT/CITY

- 1. Spatial Planning
- 2. Utilization of Space
- 3. Control of Space Utilization

C. DISCUSSION AGENDA FOR PROVINCE/DISTRICT/CITY SPATIAL PLANNING FORUM

No.	Topic of Discussion Meeting	Date Discussion	Results	Follow-up
1.				
2.				
Etc.				

D. SUGGESTIONS AND EVALUATION

III. CONCLUSION AND CLOSING

MINISTER OF AGRARIAN AND SPATIAL PLANNING/
HEAD OF THE NATIONAL LAND AGENCY

REPUBLIC OF INDONESIA,

Signed.

SOFYAN A. DJALIL